

3.	JPMORGAN CHASE BANK, N.A. VS. SVOBODA 2024-01439224	MOTION TO SET ASIDE/VACATE JUDGMENT Plaintiff JPMorgan Chase Bank, N.A.’s motion to vacate the judgment obtained on March 12, 2025, and for order of dismissal is DENIED without prejudice. On 9-16-25, the court denied, without prejudice, Plaintiff’s prior motion to vacate judgment and enter dismissal for failure to include a supporting memorandum. (ROA 33.) Plaintiff’s instant Motion again fails to include a Memorandum of Points and Authorities in support of the Motion as required by California Rules of Court rule 3.1113. Specifically, Rule 3.1113, subdivision (a) provides, “A party filing a motion ... must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported. (Cal. Rules of Court, rule 3.1113, subd. (a).) Further, Rule 3.1113, subd. (b) provides, “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Cal. Rules of Court, rule 3.1113, subd. (b).) Without the required Memorandum of Points and Authorities providing the statutory, legal and factual basis for the Motion, the court cannot rule on the merits of whether to vacate judgment and enter dismissal. Plaintiff to give notice.
4.	ALLY BANK, A CORPORATION VS. RIVERA 2025-01535491	APPLICATION FOR WRIT OF POSSESSION AND HEARING Plaintiff Ally Bank’s unopposed application for a writ of possession is DENIED. Plaintiff seeks issuance of a writ of possession directing defendant Yamil Alberto Colon Rivera to transfer possession of a 2018 Mercedes-Benz GLE-Class, VIN 4JGDA5JB1JB126817, to Plaintiff. Plaintiff also seeks an order deeming good cause exists for a brief examination of Defendant. Except as otherwise provided, “no writ shall be issued under this chapter except after a hearing on a <i>noticed</i> motion.” (Code Civ. Proc., § 512.020, subd. (a) [emphasis added].) Plaintiff has not established that Defendant received notice of this hearing. A proof of service is not attached to the notice of hearing,

		the application or any of the supporting documents. Nor has one been filed separately. Because Plaintiff failed to provide notice of this hearing the application is denied.
5.	GOLDFIELD VS. ROMERO MOTORS, LLC. 2024-01435095	MOTION FOR TERMINATING SANCTIONS Defendant Romero Motors, LLC dba Oremor Capistrano LLC dba Capistrano Valley Toyota’s motion for terminating sanctions against plaintiff Daniel Goldfield is DENIED without prejudice. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 (<i>Doppes</i>) (Footnote 5 omitted.)) Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Defendant has shown Plaintiff has violated the court’s 3-6-26 order granting Defendant’s Motion to Compel Responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Production, Set One; and imposing sanctions on Plaintiff. (Solandt Decl., ¶ 8, Ex. K.) Neither party appeared at the hearing and on 3-10-26, the court clerk emailed the court’s 3-6-26 order to the parties. (ROA 45.) Defendant’s counsel states he did not appear at the hearing because on 12-19-25, Plaintiff’s counsel advised Defendant’s counsel that Plaintiff had passed away. (Solandt Decl., ¶ 8-9.) To date, no responses or sanctions have been received. (Solandt Decl., ¶ 8.) Terminating sanctions are appropriate where violation of the court’s order is willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Since Plaintiff has passed away and cannot verify the responses, the court